

It may not be out of place,—but chiefly with a view to those readers whose business may not have led them to pay much attention to Equity,—to refer to a few of those cases, in which the proper relief cannot be had at law, and the intervention of *some* tribunal, empowered to administer Equity, becomes necessary.

A party has purchased a lot of land. He pays a portion of the purchase money, but is in arrear as to the remainder. The vendor brings an action of Ejectment and turns the purchaser out of possession. The purchaser afterwards tenders his purchase money, but the vendor refuses it, saying that the payment was not made in time, and he will not now take it. He prefers keeping the part of the purchase money which has been paid, and taking also the benefit of the improvements which the purchaser may have made. The Ejectment clearly could not have been defended. Such a purchaser can in Equity, unless there are special circumstances against him, have a specific performance of his contract, and a conveyance of the Estate on making payment. A recent case on this subject is *MACDONALD vs. ELDER*.—*Grant's Chancery Reports*, Vol. 1.

The ordinary mortgage transactions, which are constantly occurring, cannot be adjudicated upon completely by the Common Law Courts. The right of the mortgager to redeem is no unreasonable indulgence, limited, as it now is, to six months instead of twelve as formerly, after the account is taken. The Court of Chancery is the only Court by proceedings in which, this right can be foreclosed, or extinguished.

There are many cases where the right to redeem, does not rest on the express words of a mortgage in the usual form, but upon special circumstances and extrinsic evidence, which in some cases have been deemed sufficient to sustain the right to redeem, although such a permission might seem contrary to the words of the deed. Where, for instance, there has been fraud, accident, or mistake, and the holding of the deed to be an absolute conveyance would be inconsistent with the dealings between the parties. In such cases the Rules of Common Law prevent any relief being granted in those Courts, and resort is necessary to an Equitable jurisdiction. A case of this kind is